

Justice

Michael Sandel

LazyLearn track, Michael Sandel moral and political philosophy lecture series
Lecture notes organized by [LazyingArt LLC](#) with [Video2Book](#)

Original lectures by Michael Sandel. Lecture notes organized by [LazyingArt LLC](#).

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Chapter 1

The Moral Side of Murder

These notes follow Michael Sandel’s opening lecture in *Justice*, in the LazyLearn track curated by LazyingArt LLC. We begin exactly where the lecture begins: not with doctrine, but with a story that forces judgment before vocabulary. From there the argument unfolds by controlled variation. One structural feature changes, then another; a simple numerical maxim first appears to guide us, then breaks apart; only after that pressure has been felt does Sandel step back to name consequentialist and categorical moral reasoning, widen the frame to the purpose of political philosophy, and return after a pause to Bentham, utility, and the real-life stress test of *The Queen v. Dudley and Stephens*. The formulas below are editorial shorthand for the lecture’s numerical backbone. They are not board equations, and they are used only to make explicit the one-versus-many structure that the lecture itself keeps before us.

1.1 Opening the Course Through the Trolley Problem

Sandel’s first move is deliberate. He tells us that the course is about justice, and then, instead of defining justice, he begins with a runaway trolley. The trolley is hurtling down the track. Five workers stand ahead. The brakes do not work. At the last moment we notice a side track with one worker on it, and we discover that the steering still functions. The first question is immediate: what is the right thing to do?

The class is polled before any theory is named. Only a handful would continue straight. The overwhelming majority would turn. If we introduce a compact notation for the outcomes, the structure of the case may be written as

$$a_{\text{turn}} : (N_{\text{die}}, N_{\text{live}}) = (1, 5), \tag{1.1}$$

$$a_{\text{straight}} : (N_{\text{die}}, N_{\text{live}}) = (5, 1). \tag{1.2}$$

The point of the poll is not to collect opinions. It is to force reasons into the open. Sandel immediately asks the majority why they would turn. The dominant answer is plain: it cannot be right to kill five when one could be killed instead. A student then generalizes the same style of reasoning to another tragic emergency, invoking the passengers on Flight 93. The guiding thought is the same: if fewer can be killed rather than more, that seems the better course.

But Sandel does not leave the matter there. He asks those in the minority to speak. Their objection is not numerical but moral in kind: perhaps this same logic, detached from limits, is the logic that

can justify horrors on a larger scale. The lecture has therefore already produced two things that matter for the rest of the chapter. First, a simple maxim has emerged:

$$\text{better that one should die so that five should live.} \quad (1.3)$$

Second, a worry has appeared alongside it: perhaps there are some ways of saving the many that are already morally corrupted, even before we total up the results.

1.2 Trolley, Fat Man, and the Breakdown of a Simple Maxim

Sandel's next move is exact. He does not abandon the one-versus-five structure. He changes a single feature. This time we are not the driver but an onlooker standing on a bridge above the track. The trolley again rushes toward five workers. Standing beside us is a large man whose body, if pushed onto the track, would stop the trolley and save the five.

If we look only at the immediate arithmetic, the structure has not changed:

$$\begin{aligned} a_{\text{push}} : (N_{\text{die}}, N_{\text{live}}) &= (1, 5), \\ a_{\text{refrain}} : (N_{\text{die}}, N_{\text{live}}) &= (5, 1). \end{aligned} \quad (1.4)$$

Yet the class no longer reacts as it did in the driver's case. Most of those willing to turn the trolley are unwilling to push the man. The lecture now acquires its first real engine: comparative case variation.

Worked example. To isolate the force of the simple maxim, we may introduce a deliberately crude proxy for pure outcome-counting:

$$U_{\text{proxy}}(a) = N_{\text{live}} - N_{\text{die}}. \quad (1.6)$$

Then the driver's case and the bridge case are numerically indistinguishable:

$$U_{\text{proxy}}(a_{\text{turn}}) = 5 - 1 = 4, \quad U_{\text{proxy}}(a_{\text{straight}}) = 1 - 5 = -4, \quad (1.7)$$

$$U_{\text{proxy}}(a_{\text{push}}) = 5 - 1 = 4, \quad U_{\text{proxy}}(a_{\text{refrain}}) = 1 - 5 = -4. \quad (1.8)$$

Proposition 1.1. *A rule that depends only on the immediate headcount $(N_{\text{die}}, N_{\text{live}})$ cannot explain the difference between turning the trolley and pushing the man.*

Proof. In both cases the intervention produces $(1, 5)$, while the failure to intervene produces $(5, 1)$. Any rule sensitive only to those ordered pairs must therefore rank the two interventions alike. Since the class does not rank them alike, some feature other than the immediate numerical outcome must matter. $\square$

That is precisely what Sandel draws out in the discussion. Students try several distinctions. Perhaps pushing is more active. Perhaps the man on the bridge was not already part of the danger. Perhaps steering a threat differs from using a person as the very means by which the rescue is accomplished. Sandel then makes the problem harder, not easier, by introducing a trap-door variation: suppose the man could be dropped by turning a wheel. Even then the class still recoils. The tactile push is not the whole story.

1.2.1 Question & Answer

Question. Why does turning the trolley seem permissible while pushing the fat man does not?

Answer. The lecture does not settle the matter with a single formula, but it does clarify the terrain. The difference cannot lie in arithmetic, because the arithmetic has been held fixed. Nor can it lie simply in physical contact, because the trap-door variation preserves the sense that something has gone wrong even when no hands are used. What survives the exchange is a more general thought: our judgments are tracking not only outcomes but also the kind of act being performed. In the driver's case we redirect a threat already in motion. In the bridge case we make an otherwise uninvolved person the instrument of rescue. That clarification is not the final theory, but it is enough to move the lecture forward. The simple maxim has been exposed as too simple.

1.3 Doctor, Triage, and Transplant

The lecture now leaves tracks and bridges but keeps the same numerical pressure. In an emergency room six patients arrive after a terrible accident. Five are moderately injured; one is severely injured. The doctor can spend the day treating the one, in which case the five will die, or treat the five, in which case the one will die. Here most of the class again follows the numbers.

The second medical case is more disturbing. A transplant surgeon has five patients, each needing a different organ. No donors are available. A healthy man in the next room came only for a checkup. If his organs are taken, he dies and the five live.

In the same ordered-pair notation, the two medical cases may be set out as

$$a_{\text{treat one}} : (N_{\text{die}}, N_{\text{live}}) = (5, 1), \quad a_{\text{treat five}} : (N_{\text{die}}, N_{\text{live}}) = (1, 5), \quad (1.9)$$

$$a_{\text{do not harvest}} : (N_{\text{die}}, N_{\text{live}}) = (5, 1), \quad a_{\text{harvest}} : (N_{\text{die}}, N_{\text{live}}) = (1, 5). \quad (1.10)$$

Once again the numerical structure remains constant while the moral response changes. Most are willing to let the one severely injured patient die in order to save the five. Very few are willing to kill the healthy patient for organs.

This sequence matters for two reasons. First, it shows Sandel varying the case without letting us forget the arithmetic. Second, it shows that the arithmetic is no longer doing all the explanatory work. The lecture is not yet arguing for a full theory. It is building a pattern of judgments that any adequate theory will have to explain.

There is even a brief moment of comic resistance. One student proposes a way around the transplant case: take the first of the five dying patients and use that patient's remaining healthy organs to save the other four. Sandel praises the ingenuity and immediately rejects it, because it destroys the philosophical point. The point of the case is not to optimize organ logistics. It is to hold the one-versus-five structure steady while changing the character of the act.

1.4 Two Moral Logics Emerge

At this stage Sandel performs the lecture's first explicit consolidation. He steps back from the stories and asks what kinds of reasons have already begun to emerge from the discussion.

Definition 1.2. Consequentialist moral reasoning judges an act by its consequences, that is, by the state of the world the act brings about.

Definition 1.3. Categorical moral reasoning holds that some acts are wrong in themselves, regardless of the aggregate consequences they produce.

The first of these captures the thought that drove the majority in the original trolley case: if five can live rather than die, that fact seems decisive. The lecture's shorthand for this temptation is simple and memorable: better that five should live, even if one must die. The second captures the hesitation that emerged in the bridge and transplant cases: perhaps there are acts that remain wrong even when their outcome looks numerically superior.

Sandel does not present these as abstract textbook categories dropped onto the cases from above. He presents them as names for patterns already visible in the room. That is important to the lecture's rhythm. The concepts are earned before they are labeled.

This is also the point at which Bentham and Kant first appear on the horizon. Bentham stands for the most influential form of consequentialist reasoning, Kant for one of the most influential forms of categorical reasoning. The chapter should preserve that order: first the cases, then the unstable intuitions, then the names.

1.5 Why Philosophy Matters, and Why It Disturbs

From here the lecture widens dramatically. Sandel looks beyond the opening cases to the course as a whole. The syllabus includes Aristotle, Locke, Kant, Mill, and others; but it also includes contemporary disputes over equality, affirmative action, speech, marriage, military service, and public life more broadly. The books are not there to sit at a distance from politics. The politics are there to show what is at stake in the books.

Then comes the warning. Philosophy does not work by adding new information to a stable picture. It works by making the familiar strange. That is why the trolley and doctor cases are not disposable amusements. They are miniature demonstrations of the larger enterprise. We take something that feels obvious in one setting, move it slightly, and discover that we are no longer sure what we believe.

Sandel emphasizes two risks.

- There is a personal risk. Once a moral assumption has been genuinely unsettled, it cannot simply be returned to its old innocence.
- There is a political risk. Philosophical reflection may initially make us less comfortable with convention, less secure in inherited judgments, and therefore less effective in a straightforward practical sense.

This is where the lecture's tone changes. The course is not being sold as a quick improvement in citizenship. Sandel even entertains the possibility that philosophy may first make us worse citizens before it makes us better ones, because it distances us from settled assumptions. He reaches back to Socrates and Callicles to dramatize the point: there has always been a complaint that philosophy takes us away from active life, into argument, hesitation, and unsettling scrutiny.

The natural temptation in response is skepticism. Perhaps these questions never end because there are no answers to be had. Sandel rejects that move. The persistence of moral disagreement is not

proof that reflection is useless. It is evidence that the questions are unavoidable. We live some answer to them every day, whether or not we have put that answer into words. The goal of the course is therefore not calm consensus but the awakening of what Sandel calls the restlessness of reason.

1.6 Bentham, Utility, and the Return to Method

After this pause the lecture deliberately rewinds. Sandel reminds the audience what the first half has already done, both methodologically and substantively. The method is worth stating carefully because it governs the whole course.

1. We begin with judgments about particular cases.
2. We articulate the reasons or principles that seem to lie behind those judgments.
3. We confront those principles with new cases.
4. We revise judgments and principles in light of one another, under the pressure to bring them into alignment.

Only after this recap does Bentham enter as a systematic thinker. Sandel now gives explicit philosophical form to the outcome-based reasoning that has already been visible in the cases. Bentham's central claim is that the right thing to do, individually or collectively, is to maximize utility. What is utility? Sandel's answer comes in paired verbal formulas:

$$\text{utility} = \text{pleasure} - \text{pain}, \quad (1.11)$$

$$= \text{happiness} - \text{suffering}. \quad (1.12)$$

If we introduce a minimal notation to compress this idea, we may write

$$U(a) = H(a) - S(a), \quad (1.13)$$

where $H(a)$ is the happiness resulting from act a and $S(a)$ is the suffering it produces. Then Bentham's directive becomes

$$a^* = \arg \max_a U(a). \quad (1.14)$$

Remark 1.4. These formulas are cautious transcript-based reconstructions. No board equation survives for this lecture, and Sandel states Bentham's view in words rather than symbols. The notation is included only to make the lecture's structure more explicit.

Bentham's route to the principle matters. He begins from the claim that human beings are governed by two sovereign masters, pain and pleasure. Since we seek pleasure and avoid pain, morality and legislation should be organized around the balance of the two. In slogan form, utilitarianism becomes the greatest good for the greatest number. If one wants a compact symbolic rendering of that slogan, one may write

$$a^* = \arg \max_a \sum_i u_i(a), \quad (1.15)$$

but the lecture does not depend on any elaborate calculus. What matters is the guiding thought: the best act is the act that brings about the best aggregate condition.

1.7 Dudley and Stevens: Necessity, Lottery, and Consent

With Bentham's principle now named, Sandel turns to a real legal case: *The Queen v. Dudley and Stephens*. This shift from hypothetical puzzle to actual disaster is a major hinge in the lecture. The pattern is familiar, but the emotional temperature is higher. Four men survive a shipwreck in a lifeboat. Their food is nearly gone. There is no fresh water. Richard Parker, the cabin boy, grows ill after drinking sea water and appears close to death. Dudley proposes a lottery. Brooks refuses. No lottery is held. The next day Dudley kills Parker, and the survivors sustain themselves on his body until rescue comes.

Before taking up the arguments, it is useful to set the major sacrificial cases from the lecture alongside one another.

Case	Intervention	$(N_{\text{die}}, N_{\text{live}})$	Dominant reaction
Trolley driver	a_{turn}	(1, 5)	Turn
Bridge onlooker	a_{push}	(1, 5)	Do not push
Emergency triage	$a_{\text{treat five}}$	(1, 5)	Treat the five
Transplant surgeon	a_{harvest}	(1, 5)	Do not harvest
Dudley-Stevens defense	$a_{\text{kill Parker}}$	(1, 3)	Majority condemn

The defense is necessity. Better that one should die so that three could survive. In the most compressed numerical form, the defense proposes

$$a_{\text{kill Parker}} : (N_{\text{die}}, N_{\text{live}}) = (1, 3). \quad (1.16)$$

But here the lecture becomes more subtle than a simple headcount. Unlike the trolley case, the alternative outcome is not known in advance. Rescue may come soon or not at all. The defense therefore depends on a conjecture about consequences:

$$U(a_{\text{kill Parker}}) \stackrel{?}{>} U(a_{\text{wait}}). \quad (1.17)$$

Some students then broaden the utilitarian frame in explicitly Benthamite fashion. It is not merely three lives against one. The three survivors have families and dependents waiting back home; Parker is an orphan. If welfare is what matters, then perhaps the benefit of preserving the three is larger than the bare arithmetic first suggests.

Sandel, however, does not let this utilitarian case stand unopposed. He polls the room as though we were the jury, while bracketing the legal question and focusing on moral permissibility. A sizable majority condemns the killing. He then lets the minority speak first. Necessity, desperation, survival, and even later productive social contribution are all invoked in Parker's place. Only then does he turn to the prosecution. Some object that no human being has the authority to decide another's fate in this way. Others maintain, more categorically, that murder remains murder.

1.7.1 Question & Answer

Question. Would a lottery, or Parker's consent, make the killing morally permissible?

Answer. This is where the lecture becomes especially careful. Sandel does not treat lottery and consent as identical. He lets them appear one after the other, and the difference matters.

1. **Necessity.** The first defense is the strongest consequentialist one: in desperate circumstances, one death may preserve several lives, and perhaps that is enough.
2. **Fair procedure.** The next thought is that perhaps the real wrong in the actual case lies in the unilateral choice. A lottery would at least count everyone equally and prevent one party from deciding that his own life matters more.
3. **Consent.** The strongest modifier is then introduced by the class itself: if Parker freely agreed, would the moral status of the act change because the sacrifice became, in some sense, his own?

The lecture's answer is again not a final theorem but a clarified map of positions. Some students are moved by lottery or consent. They think the moral problem lies largely in the absence of consultation or procedure. Others are not moved. They insist that consent under such circumstances may be coerced, that a fair procedure can still generate an unjust act, and that even if self-sacrifice is admirable, it does not follow that someone else may perform the killing. The categorical objection therefore survives every attempt to soften the case.

Sandel's final step is to gather the discussion into three precise philosophical questions.

1. If killing is categorically wrong, is that because persons have rights that cannot be reduced to welfare?
2. Why should agreement to a fair procedure justify the outcome of that procedure?
3. What moral work does consent do, and why does it seem capable of transforming an act that would otherwise be wrong?

The lecture ends by sharpening these questions rather than by resolving them. That is exactly right. Dudley and Stephens is not merely one more example. It is the point at which necessity, utility, fairness, rights, and consent are all forced into the same frame.

1.8 Summary

This first lecture establishes both the method and the ambition of the course. We begin with cases, not doctrines. We are polled before we are instructed. We then watch a simple one-versus-many maxim travel from case to case until it no longer explains our own judgments. Out of that instability emerge two rival moral logics: consequentialist reasoning, which looks to outcomes, and categorical reasoning, which holds that some acts are wrong in themselves. The course then pauses to explain why philosophy matters, returns with a more explicit account of Bentham's utilitarianism, and finally tests that account against the lifeboat case of Dudley and Stephens. The result is not a settled answer. It is a better question: whether aggregate welfare can justify sacrifice, whether fair procedure can license a deadly outcome, and what consent can and cannot do in moral life.

Chapter 2

Putting a Price Tag on Life

This chapter follows Michael Sandel’s second lecture in Justice, presented here in companion-note form for the LazyLearn track and curated by LazyingArt LLC. We return from Dudley and Stephens to Bentham because Sandel wants to do more than revisit a dramatic case. He wants to know whether the impulse to count lives, pains, and benefits can be turned into a general moral principle. The lecture therefore begins with a clean rule, pushes that rule into public policy, and then tests whether the rule survives its own consequences.

2.1 Returning to Bentham from the Lifeboat Case

Sandel opens with a recap: last time we argued about the lifeboat case, the case of cannibalism at sea, and now we turn back to Bentham. The order matters. Utilitarianism is not introduced as an abstract doctrine dropped from the sky. It is introduced as a way of making systematic the sort of reasoning to which the lifeboat case had already tempted us.

Sandel’s brief sketch of Bentham’s life serves a purpose. Bentham goes to Oxford at twelve, to London at fifteen, to law at sixteen, and then gives his life not to legal practice but to jurisprudence and moral philosophy. The biographical sketch is there to mark the ambition of the doctrine: this is meant to be a general principle of morals and politics.

Definition 2.1. Bentham’s principle of utility says that the highest principle of morality, whether personal or political, is to maximize the general welfare, or the collective happiness, or the balance of pleasure over pain.

Sandel states the principle in prose. For compactness we may write

$$U = H - S, \tag{2.1}$$

where H denotes happiness or pleasure and S denotes suffering or pain. This notation is editorial shorthand, but it tracks the lecture closely.

Bentham’s next move is to extend the same logic from one person to the community. A community, he says, is the sum of the individuals who comprise it. If we compress that idea into a single formula, we obtain

$$U_{\text{community}} = \sum_{i=1}^N u_i. \tag{2.2}$$

Once the problem is written in this way, the political rule becomes immediate:

$$a^* = \arg \max_a U(a). \quad (2.3)$$

The right act, the right policy, and the right law are the ones that maximize utility.

This is the first mathematical spine of the lecture. It is elementary in form, but it is powerful in implication. If we can identify the relevant benefits and costs, and if those benefits and costs can be placed on a common scale, then legislation begins to look like a problem of comparison and optimization.

2.2 Cost-Benefit Analysis as Utilitarianism in Practice

Sandel's first major pivot is from principle to mechanism. Utilitarianism, he says, often appears in contemporary life under the name of cost-benefit analysis. The language changes, but the form does not. We list the benefits, list the costs, and compare the totals.

For a policy a , the operational rule is

$$\text{Net}(a) = \text{Benefits}(a) - \text{Costs}(a). \quad (2.4)$$

At this stage the logic seems almost irresistible. What could be more reasonable than counting up the benefits of a policy and subtracting its burdens?

The Czech smoking case is Sandel's first stress test. Philip Morris commissioned a cost-benefit study of smoking in the Czech Republic, and the study concluded that the government gains by having citizens smoke. Sandel then walks us through the ledger. On one side lie the negative effects: increased health-care costs for smoking-related disease. On the other side lie tax revenues, pension savings, savings in health care when people die earlier, and even savings in housing costs for the elderly. In a compact ledger form,

$$\begin{aligned} \text{Net}_{\text{Czech smoking}} &= \text{tax revenue} + \text{health-care savings from early death} \\ &\quad + \text{pension savings} + \text{housing savings} - \text{smoking-related health costs} \\ &= \$147 \text{ million.} \end{aligned} \quad (2.5)$$

At the individual level, the same reasoning yields

$$\text{savings per premature death} > \$1200. \quad (2.6)$$

The arithmetic is not presented as a parody. Sandel lets it run in its own terms. That is what gives the example its force. Early death now enters the calculation as a fiscal gain. The lecture's moral pressure does not come from any algebraic mistake. It comes from the spectacle of a coherent ledger whose coherence seems itself offensive.

At once Sandel anticipates the utilitarian reply. Perhaps this is an unfair test. Philip Morris was pilloried in the press and apologized. A defender of utilitarianism may say that the calculation omitted what matters most: the value of the life lost, the loss to the person, and the loss to the family. If those terms were added to the ledger, perhaps the result would reverse. Sandel accepts that this is the natural reply, and then moves to a case designed precisely to test it.

2.3 Ford Pinto, Cell Phones, and the Price of Life

The Ford Pinto case is Sandel's harder test. Here, unlike in the Czech example, the company does assign a dollar value to life and injury. So the question becomes sharper: if the life term is entered explicitly, does that save cost-benefit reasoning, or does it expose its problem more clearly?

Ford knew that the Pinto's rear fuel tank was vulnerable in collisions and considered adding a protective shield. The safety improvement was estimated at \$11 per car across 12.5 million cars and trucks:

$$C_{\text{Pinto safety}} = (\$11) \cdot (12.5 \times 10^6) \approx \$137 \text{ million.} \quad (2.7)$$

The transcript's arithmetic is approximate here, as Sandel reports \$137 million rather than \$137.5 million, but the structure is clear.

The benefit side of the memo included expected deaths, expected injuries, and the value of vehicles that would otherwise be destroyed. Because the injury coefficient is garbled in the transcript, it is safest to keep that term symbolic:

$$B_{\text{Pinto safety}} = 180(\$200,000) + 180I + 2000(\$700) \approx \$49.5 \text{ million,} \quad (2.8)$$

where I denotes the memo's injury valuation. The decision then follows from the sign of the difference:

$$\begin{aligned} \Delta_{\text{Pinto}} &= B_{\text{Pinto safety}} - C_{\text{Pinto safety}} \\ &\approx \$49.5 \text{ million} - \$137 \text{ million} \\ &\approx -\$87.5 \text{ million.} \end{aligned} \quad (2.9)$$

So the device is not installed.

This is one of the lecture's strongest numerical examples because the arithmetic is so plain. If benefits are lower than costs, the improvement is rejected. What horrifies the jurors is not that the memo forgot to count life. It counted life explicitly.

Sandel then widens the frame. The same form appears in policy debates over cell-phone use while driving. A study is said to find roughly 2000 annual deaths from such use; later, in the live exchange, Sandel rounds the figure up to 2300. Against these deaths are placed the economic and practical gains from using travel time for business, coordination, and ordinary convenience. The resulting structure is again the same:

$$\text{Net}_{\text{cell phone}} \approx \text{convenience and economic benefit} - N_{\text{deaths}} V_{\text{life}}. \quad (2.10)$$

The point is not that the lecture settles the cell-phone question. The point is that once V_{life} is introduced, the issue appears to fit the same calculus as the Pinto memo.

2.3.1 Question & Answer

Can human life be given a dollar value without distorting the moral problem?

Sandel's classroom exchange produces two answers. One answer says that the problem is numerical. If Ford valued a death at \$200,000, then the figure was far too low. On this view the calculus itself is sound; it merely needs a more realistic price, whether \$1 million, \$2 million, or some other figure.

The other answer says that the problem lies deeper. Julia's response captures it sharply: the mistake is not that the number is too low, but that human life should not be handled by this monetary device at all. What is lost is not only money or earnings, but a person and a set of human relationships, and those losses may be misdescribed the moment they are entered as a price.

The lecture does not yet decide between these two replies. What it does is more important structurally. It forces the issue from a technical dispute about inputs to a philosophical dispute about the form of the calculation itself. That shift opens the way to Sandel's two objections to Bentham.

2.4 Two Objections to Bentham: Rights and Commensurability

Sandel now steps back from the cases and asks what, exactly, the objections are. He does not want the lecture to remain a collection of appalled reactions. He wants the pressure points named cleanly.

The first objection concerns rights, especially the rights of minorities and individuals. Anna voices this worry in the classroom: the fact that a person belongs to the smaller number does not mean that his claims matter less. Youngda replies in a perfectly Benthamite way that each person's preference still counts; the difficulty is that the larger number outweighs the smaller. Sandel then presses the point with examples. The boy in the lifeboat had as much right to live as the others. A suspected terrorist may possess rights even if torturing him might save thousands. And the Roman arena case states the difficulty in the starkest way: a few victims suffer horribly, a crowd exults, and pure aggregation threatens to justify the spectacle if the crowd is large enough.

The second objection concerns commensurability. Even if we agreed to aggregate, can all goods, losses, and human concerns be translated into a single scale? Thorndike's survey is introduced as an attempt to show that they can. Respondents assigned dollar amounts to unlike experiences: pulling a tooth, cutting off a toe, eating a worm, living the rest of one's life on a farm in Kansas, choking a stray cat. The resulting ranking is exactly the kind of thing Sandel wants us to inspect:

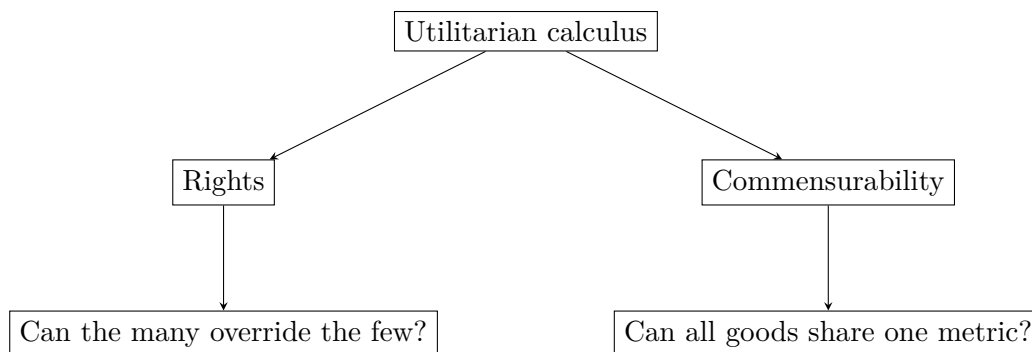
$$V(\text{Kansas}) = \$300,000 > V(\text{eat earthworm}) = \$100,000 > V(\text{pull tooth}) = \$4,500. \quad (2.11)$$

The ranking is not interesting because it is silly. It is interesting because the silliness may reveal something true: perhaps these goods and harms are being misshapen by the very act of being forced into one scale.

Sandel's St. Anne's story makes the same point with more social texture. Traditional objections to overnight male guests at a women's college were translated into utilitarian housekeeping costs: baths, hot water, mattresses, and finally a fee of 50 pence per night. The headline that followed showed at once how translation into a cost schedule can destroy the meaning of what is being discussed. A question of moral convention had become a price tag.

At this point Sandel explicitly consolidates the argument. We are looking at two different objections: one about whether utilitarianism respects rights, and the other about whether all values are commensurable at all.

The diagram is only a map, but it captures an important pedagogical beat. The lecture has moved from examples to a formal branching of the problem.



2.5 Bentham on Quantity, Not Quality

Sandel's next pivot is subtle. Up to now we have asked whether we may add all goods together. He now asks a different question: even if we could add them, why should we count every preference without asking whether it is a good preference or a bad one?

Bentham's answer is that we should refuse such qualitative rankings. What matters are the intensity and duration of pleasure and pain. The slogan Sandel gives is the famous one: the quantity of pleasure being equal, pushpin is as good as poetry. In a deliberately schematic shorthand, we may write

$$\text{Qty}(p_1) = \text{Qty}(p_2) \implies p_1 \sim p_2. \quad (2.12)$$

The notation is only a compression of Bentham's claim. If the quantity is the same, the ranking is the same.

Sandel is careful to show why this view is attractive. It looks egalitarian. It refuses to let one class of people declare another class's pleasures intrinsically inferior. Mozart versus Madonna, ballet versus bowling: who is to judge? Bentham's refusal to judge carries a democratic appeal.

But the lecture now has enough material on the table to challenge that flatness. The Roman crowd's delight in blood sport does not look like just another pleasure of equal standing. Here the objection is not only that Christians are wronged. It is also that the crowd's pleasure seems base and degrading. So the question becomes unavoidable: can a utilitarian distinguish higher from lower pleasures without abandoning utilitarianism? That question is the bridge to Mill.

2.6 Mill's Repair: Higher Pleasures and the Competent Judge

Mill enters, in Sandel's presentation, as a reformer from within. The brief biography is not ornamental. It marks Mill's inheritance and his burden. James Mill, Bentham's disciple, gives his son an extreme education: Greek at three, Latin at eight, Roman law at ten. Then comes the breakdown, the depression, and eventually Harriet Taylor, under whose influence Mill tries to humanize utilitarianism.

Mill's first move is not to reject utility. On the contrary, he affirms it emphatically. The desirable, he says, is what people do in fact desire. So the repair must work from within the field of actual preference, not by appealing to a mysterious moral faculty outside it.

Definition 2.2. Mill's competent-judge test says that of two pleasures, the higher pleasure is the one that all or almost all who have experienced both decidedly prefer, and prefer independently of

Question posed	Dominant response	Philosophical use
Most liked	The Simpsons	immediate preference
Highest experience	Shakespeare	qualitative ranking

any external feeling of moral obligation.

A compact way to summarize the structure is

$$\text{Higher}(p_1, p_2) \iff \text{those acquainted with both } p_1 \text{ and } p_2 \text{ decidedly prefer } p_1. \quad (2.13)$$

The significance of the definition lies in what it excludes. Mill does not permit us to step outside actual preference. He does, however, restrict the relevant preferences to those of people who know both sides of the comparison.

2.6.1 Question & Answer

How can a utilitarian distinguish higher from lower pleasures without leaving utilitarian premises?

Mill's answer is that we do not leave the premises at all. We remain with desire and preference. But we do not consult just any desire. We ask those who have experienced both alternatives which one they decidedly prefer.

This is why Mill can say that some pleasures are higher without appealing to an independent moral yardstick. The higher pleasure is not the one pronounced noble by some external authority. It is the one preferred by those competent to compare.

The repair is ingenious, but it is also delicate. The class of competent judges is typically educated, cultivated, and able to appreciate what crude preference might miss. So the distinction between recording preferences and educating preferences begins to narrow. Sandel does not suppress this tension. He prepares to test it in public.

2.7 Shakespeare, The Simpsons, Rights, and the Limits of the Repair

Sandel's test is the classroom experiment with Hamlet, Fear Factor, and The Simpsons. Its force depends on the two-stage structure. First the room is asked what it likes most. Then it is asked what it regards as the higher or worthier experience. If those two questions yield different answers, Mill has gained an important foothold.

This is the live form of Mill's claim:

$$\text{Preferred} \neq \text{Higher}. \quad (2.14)$$

The room's immediate taste and its reflective ranking do not coincide. That gap is exactly what Bentham's flat metric has trouble recognizing.

The subsequent discussion deepens the point. One student suggests that Shakespeare seems higher only because culture teaches us to say so. Another replies that if one had to live for the rest of one's life with one body of material, the richer work would sustain a deeper mental life. Joe's answer is especially important for the lecture's rhythm: what we like in the moment is not necessarily what we would choose for a life.

The rat example pushes the same contrast into a simpler biological frame. A rat can stimulate its own brain and experience intense pleasure to the point of death. That shows intensity; it does not show the superiority of the life. Mill's point is that human beings who know both sides of the comparison would prefer a life of higher faculties, even if it includes dissatisfaction.

At this point Sandel broadens the repair from pleasures to rights. Mill's claim is that justice is not a foreign body within utilitarianism. It is the chief and most sacred part of morality because, regarded collectively, it stands higher in the scale of social utility. If we want a symbolic shorthand for the order Mill is trying to assert, we may write

$$\text{Justice and rights} \succ \text{other moral requirements.} \quad (2.15)$$

The relation is ordinal, not numerical. Mill is not giving us a meter for justice. He is claiming that, once long-run human interests are considered, rights deserve a privileged place within the utilitarian scheme.

This is where the lecture deliberately stops short of closure. Has Mill repaired utilitarianism, or has he smuggled in non-utilitarian standards while still using the vocabulary of utility? Sandel refuses to settle the matter prematurely. The unresolved question is part of the intellectual work of the lecture.

The Bentham coda then returns us to the founder. Bentham's preserved body, his wax head, his insistence that even a dead philosopher should be useful: these details are funny, but not merely funny. They show a thinker who remained faithful to his principle in life and in death. The story closes the lecture in the right way. Bentham is not dismissed. He is left before us as both rigorous and unsettling.

2.8 Summary

We began with Bentham's simple rule that the right act or policy maximizes utility. We then watched that rule become operational in cost-benefit analysis, where benefits are added, costs are subtracted, and decisions follow from the sign of the result. The Czech smoking study and the Ford Pinto memo showed how far that arithmetic can reach once life itself receives a monetary term.

From there the lecture extracted two objections. The first was about rights: perhaps the good of the many cannot justify the sacrifice of the few. The second was about commensurability: perhaps not all goods and harms belong on one common scale in the first place. Bentham's own answer was to count quantity rather than quality. Mill's answer was to preserve utility while distinguishing higher pleasures and giving justice a privileged place in the long run. Whether that answer truly remains inside utilitarianism is the question Sandel leaves suspended, and it is the right question with which to end.